

BEFORE THE FEDERAL MARITIME COMMISSION

SAMSUNG ELECTRONICS AMERICA, INC.

Complainant,

v.

SM LINE CORPORATION

Respondent.

Docket No. 23-01

JOINT MOTION FOR LEAVE TO FILE REPLY AND SUR-REPLY

Pursuant to the Presiding Officer’s email directive dated April 17, 2024, Complainant Samsung Electronics America, Inc. (“SEA”) and Respondent SM Line Corporation (“SM Line”) (collectively, “Parties”) hereby submit this joint motion seeking leave: (i) for SEA to file a reply to SM Line’s Opposition (“Opposition,” Dkt. No. 84) to SEA’s Motion to Compel and for Sanctions for Spoliation of Evidence (“Motion,” Dkt. No. 78); and (ii) for SM Line to file a sur-reply thereto, both of which will be limited to a maximum of five (5) pages.

Accordingly, the Parties request that (i) SEA be permitted the opportunity to file a reply to SM Line’s Opposition by April 22, 2024; and (ii) SM Line be permitted to file a sur-reply by April 29, 2024.

Respectfully Submitted,

Dated: April 18, 2024

HOLLAND & KNIGHT LLP

MONTGOMERY MCCracken WALKER
& RHOADS LLP

By: /s/ Christopher R. Nolan

Christopher R. Nolan, Esq.

Attorneys for Complainant

31 West 52nd Street

New York, New York 10019

Tel. (212) 513-33007

By: /s/ Matteo Bonuzzi

Matteo Bonuzzi, Esq.

Attorneys for Respondent

437 Madison Avenue

New York, NY 10022

Tel. (212) 867-9500